



Chronically Sick and Disabled Persons (Scotland) Act 1972

1972 CHAPTER 51

An Act to extend sections 1 and 2(1) of the Chronically Sick and Disabled Persons Act 1970 to Scotland.
[27th July 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For section 29(2) of the Chronically Sick and Disabled Persons Act 1970 (which limits the extent of that Act) there shall be substituted the following subsection:—

“(2) Sections 1 and 2(1) of this Act shall apply to Scotland so however that—

(a) any references to functions under section 29 of the National Assistance Act 1948 shall be construed as references to duties to chronically sick or disabled persons (being persons in need) under section 12 of the Social Work (Scotland) Act 1968; Amendment of section 29(2) of the Chronically Sick and Disabled Persons Act 1970. 1970 c. 44. 1948 c. 29. 1968 c. 49.

(b) any references to the services provided under arrangements made by the authority under the said section 29 shall be construed as references to the services for such persons as aforesaid provided by a local authority by virtue of the said section 12; and

(c) in section 2(1) as originally enacted—

(i) the words ‘who is ordinarily resident in their area’ shall be omitted;

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(ii) for the words from 'notwithstanding' to 'that Act' where those words secondly occur there shall be substituted the words 'subject to the provisions of section 5 of the said Act of 1968 (which requires local authorities to exercise their functions under that Act)'."

(2) Nothing in the provisions of this Act shall derogate from the scope of what local authorities are under a duty to do in respect of any person by virtue of any provision of the said Act of 1968.

Expenses.

2. There shall be defrayed out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under any other enactment.

Short title.

3. This Act may be cited as the Chronically Sick and Disabled Persons (Scotland) Act 1972.